

		emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' " (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050–1051.) "The complaint must plead specific facts that establish severe emotional distress resulting from defendant's conduct. [Citation.]" (<i>Michaelian v. State Comp. Ins. Fund</i> (1996) 50 Cal. App. 4th 1093, 1114.) The Complaint does not allege any facts specific to DOE defendants and/or Powerstone to support a cause of action for intentional infliction of emotional distress against Powerstone. (Complaint, ¶¶ 107-111.) The demurrer to the seventh cause of action is SUSTAINED, with 10 days' leave to amend. <i>Ninth Cause of Action for Loss of Consortium</i> Powerstone contends that Plaintiff's ninth cause of action for loss of consortium fails to state facts sufficient to constitute a cause of action against Powerstone as no facts are pled whatsoever in support of this cause of action. Plaintiffs contend that the loss of consortium claim is derivative of Plaintiffs' underlying tort claims, and that because Plaintiffs have sufficiently alleged claims for nuisance, negligence, premises liability, concealment, negligent misrepresentation, and intentional infliction of emotional distress, the loss of consortium claim survives. Plaintiffs assert that , if necessary, Plaintiffs can amend to allege that Powerstone's post-takeover failure to address the still-uninhabitable condition prolonged the spouses' loss of companionship, comfort, care, assistance, society, emotional support, household support, and normal marital life. There are no allegations under the ninth cause of action to support this cause of action. (See Complaint at p. 23.) The demurrer to the ninth cause of action is SUSTAINED, with 10 days' leave to amend. <i>Powerstone to give notice.</i>
104	Barajas vs. Iniguez, 24-01422858	Defendant Norma Iniguez ("Defendant") moves pursuant to Code of Civil Procedure section 1048 and California Rules of Court, rule 3.350 for an order consolidating (1) Norma Iniguez v. Roberto Barajas, OCSC Case No. 30-2025-01474457 and (2) Roberto Barajas v. Norma Iniguez, OCSC Case No. 30-2024-01422858. Defendant also moves to continue trial currently set of 10/12/2026 pursuant to California Rules of Court, rule 3.1332. Plaintiff Roberto Barajas ("Plaintiff") opposes the motion. Importantly, however, the opposition does not have a proof of service. Regardless, the Court finds Defendant's arguments persuasive.

		Pursuant to Code of Civil Procedure section 1048 and California Rules of Court, rule 3.350, Defendant Norma Iniguez’s Motion to Consolidate the following two cases is GRANTED: 1. Roberto Barajas v. Norma Iniguez, OCSC Case No. 30-2024-01422858, filed on 08/29/2024. 2. Norma Iniguez v. Roberto Barajas, OCSC Case No. 30-2025-01474457 filed on 04/10/2025. The court finds that all procedural requirements set forth in California Rules of Court, rule 3.350 are met. Moreover, the court finds that the actions involve common questions of law and fact such that the interests of the parties and the court would be best served by consolidating the cases. (See Code Civ. Proc., § 1048.) Moreover, pursuant to California Rule of Court, rule 3.13321, the Court finds that the factors set forth in California Rules of Court, rule 3.1332 weigh in favor of continuing trial and therefore the request to continue the 10/12/2026 trial date is GRANTED. (Cal. Rules of Court, rule 3.1332.) Trial is CONTINUED to April 12, 2027 at 9 a.m. <i>Moving party to give notice.</i>
105	Peltekci vs. Jaguar Land Rover North America, LLC, 23-01357182	Plaintiffs JOHN PELTEKCI and CHRIS PELTEKCI move for an award of attorney fees under the “lodestar” method in the amount of \$44,620.00. Plaintiffs also request a modest “lodestar” multiplier/enhancement of 1.5x, in the amount of \$22,310.00, for a total of \$66,930.00 in attorney fees. The total amount requested by this motion is \$66,930.00. Moving party also requests costs in the amount of \$3,025.75. The plain wording of section 1794, subdivision (d) requires the trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (<i>Hanna v. Mercedes-Benz USA, LLC</i> (2019) 36 Cal.App.5th 493, 506.) Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the